

ORDER SHEET
IN THE LAHORE HIGH COURT,
MULTAN BENCH, MULTAN

JUDICIAL DEPARTMENT

W.P.No.1430/2021

Al Abbas Mini Travel Service etc. **Vs.** Govt. of Punjab etc.

Sr. No. of order/ proceedings	Date of order/ Proceeding	Order with signature of Judge, and that of Parties' counsel, where necessary
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03.02.2021 Mr. Tahir Mehmood, Advocate for the petitioners.
Mr. Abdul Salam Alvi, Advocate for respondents No.4 to 6.
Haji M. Aslam Malik, Advocate for Municipal Corporation, Multan.
Mr. Muhammad Aurangzeb Khan, AAG alongwith Rana Shahid Manzoor, Senior Law Officer, Commissioner Office, Multan, Rana Mohsin Ghulam Sabir, Secretary, District Regional Transport Authority, Multan and Muhammad Khalid Amin, Inspector, CPO Office, Multan.

Through this constitutional petition the petitioners who are transporters are aggrieved of the action of the respondents for raiding their D-Class Wagon Stands at Dera Adda, Multan and seek direction to the respondents not to interfere in their lawful business in violation of order dated 25.08.1994 passed in W.P.No.3372/1994 and order dated 05.06.2002 passed in C.P.No.577-L/1995.

2. It is contended by learned counsel for the petitioners that through the afore-referred orders passed by this Court and the Hon'ble Supreme Court, the respondents were restrained from illegally interfering in the transport business of the petitioners and removing them from their premises mentioned above without providing them alternate arrangement. Consequently the action of the respondents is not sustainable.

3. On the other hand, learned AAG and learned counsel for the respondents state that as per the Govt.

policy all the wagon and bus stands working in different parts of the city are being shifted to General Bus Stand in order to facilitate the general public by reducing congestion of traffic and to counter threat of terrorism, etc. The Secretary, RTA present in the Court states that alternate place is being provided to the petitioners and bays shall be allotted to them as per requirement keeping in view the number of registered vehicles owned by the petitioners for the purpose of plying the same. It is further mentioned by the counsel for the respondents that the earlier order dated 25.08.1994 passed by this Court was modified by the Hon'ble Supreme Court vide order dated 05.06.2002 whereby only alternate arrangement for plying wagons was to be made by the respondents and the condition of providing one *Kanal* land on lease for the purpose of plying vehicles mentioned by this Court in its order dated 25.08.1994 stood modified.

4. The petitioners have been plying vehicles since long from the present premises situated in the city and seek direction to the respondents not to interfere in their lawful business and to refrain from causing any harassment. On the other hand, the claim of the respondents is that as per Govt. policy with a view to provide reasonable facility to the general public, reduce congestion of traffic and curtail threat of terrorism etc., vehicles plying from stands situated in various parts of the city are being shifted to General Bus Stand constructed for the said purpose by investing millions of rupees from the Govt. Exchequer where the respondents are providing reasonable facilities to the transporters. The shifting of buses and wagons stands to a particular place such as General Bus Stand falls within the policy making domain of the Govt. and such

policy decision cannot be interfered with by this Court in its constitutional jurisdiction unless it is shown to be against some provision of law, based on illegality, arbitrariness or established *mala fides*. Reliance is placed on **PLD 2014 Supreme Court 01** (*Dossani Travels Pvt. Ltd. and others v. Messrs. Travel Shop (Pvt.) Ltd. and others*). Although vide order dated 25.08.1994 direction was issued by this Court to provide one Kanal land to the petitioners on lease with reasonable time for shifting the Wagon Stand of the petitioner to appropriate place but the said order after being initially suspended by the Hon'ble Supreme Court vide order dated 04.09.1995 passed in C.P.No.577-L/1995 was subsequently through final consent order dated 05.06.2002 modified in the following terms:-

“The learned Additional Advocate General, Punjab, submits that the parties have settled the matter and Ch. Muhammad Ashiq, Tehsil Municipal Officer, Tehsil Municipal Admiration, Multan City, Mr. Mohiuddin, Tehsil Officer Regulation, Tehsil Administration, Multan and Ch. Muhammad Iqbal, Secretary Regional Transport Authority, Multan, have instructed him to make the statement on their behalf that respondents No.3, 8, 9 & 10 would for the time being continue to operate from their respective sanctioned Wagon Stands strictly in accordance with law, till such time the concerned Administration is able to make alternate arrangements amicably for the parties.

The above statement is accepted by the learned counsel for respondents No.3, 8, 9 & 10 as well as learned counsel for respondent No.17 and they requested that the appeal be disposed of in the above terms.

In view of the above statement of the learned Additional Advocate General, Punjab, the appeal is disposed of in the above terms with no order as to costs.”

In the above order, the Hon'ble Supreme Court has observed that in view of statement of Additional Advocate General, Punjab which is acceptable to the petitioners, the petitioners would for the time being continue to operate their business from their respective sanctioned Wagon Stands strictly in accordance with law till the concerned administration is able to make alternate arrangement amicably and petition was disposed of in the same terms, from which it is apparent that the order of this Court stood modified accordingly.

5. In the given circumstances, the subsistence of conditions mentioned in the order of the High Court including one for providing one *Kanal* land on lease to the petitioners for the purpose of shifting of Wagon Stand is to be considered in the light of the express wording used in the order of the Hon'ble Apex Court wherein it has specifically been mentioned that in view of statement of learned Additional Advocate General, Punjab the appeal is disposed of in the above terms with no order as to costs, which leaves no doubt that the order of High Court had been varied. The order of the Hon'ble Supreme Court would have overriding effect over the order of this Court, which would lose its independent existence on the basis of doctrine of merger of orders / degrees, for which purpose reliance is place on case reported as PLD 2016 Supreme Court 358 (“Sahibzadi Mehrun Nisa and another v. Mst. Ghulam Sughran and another”), whereby it has been held that in the cases of reversal or modification of the judgment of High Courts, Tribunals or Special Courts before the Supreme Court or those affirmed in appeal, the Judgment of the Hon'ble Supreme Court shall be deemed to be final.

6. In furtherance of the afore referred order of the Hon'ble Supreme Court dated 05.06.2002, the respondents are offering to accommodate the petitioners in the General Bus Stand by providing them with office space, waiting area common for all passengers and separate bays to the petitioners as also apparent from the statement of the Secretary RTA made in the Court. The said shifting cannot be stated to be in contravention of order of the Hon'ble Supreme Court for providing alternate arrangements, which arrangements even otherwise have not been specified in detail in the said order and only reference has been made to amicable alternate arrangements. Chambers Concise Dictionary published by Chambers Harrap Publishers Ltd. Edinburgh provides meaning of word "*amicable*" as '*friendly, done in a reasonably friendly manner*' while the Oxford Advanced Learner's Dictionary of current English, Ninth edition, by A.S. Hornby, published by Oxford University Press provides meaning of word "*amicable*" as '*done or achieved in a polite or friendly way*', which does not mean that the arrangement is to be made with the consent of the petitioners as in that case the petitioners can object to every arrangement made by the respondents by stating that the said arrangement is not acceptable to them and therefore not amicable, rather word amicable would imply for settling the disagreement in a friendly, sociable and peaceful manner. If any other meaning is given to the word amicable in the present situation the same would imply that the petitioners have been given the right to interfere in the policy making domain of the respondents/Government and veto the same. Hence, it is to be assumed that the order of the Hon'ble Supreme Court meant for reasonable alternate arrangement

available with the respondents, which is not violative of any provision of law, prejudicial / discriminatory to the petitioners or based on *mala fide*.

7. The question of shifting of bus stands to another specified place on orders passed by the authorities in a similar situation came up for consideration before the Peshawar High Court on the question of being violative of Article 18 of Constitution in case “Haji Zar Ali Khan, Proprietor v. Government of N.W.FP. and 3 others” (PLD 2000 Peshawar 14) wherein a Division Bench of the said Court while deciding the matter held that shifting of bus stand, if bonafide and to control the traffic, was not violative of Rule 253 of West Pakistan Motor Vehicles Rules, 1969 and question of freedom of business provided under Article 18 of the Constitution was not attracted in such like circumstances. In the said case, as also in the present case, plea was raised that the bus stand is situated in personal property of the petitioner, therefore, the same cannot be ordered to be shifted to another specified place. While considering the said aspect of the matter the Division Bench held that when the petitioner’s establishment was subject to control exercised by the authority, it would become altogether meaningless whether bus stand was established on one’s personal property or on rented property. Personal property with reference to establishment of bus stand has no significance as bus stand could not be established beyond the provisions of law. The question of shifting of stand on the basis of exemption provided to the petitioner also came for consideration in the same judgment which was dealt by the said Court by observing that unless there was some restriction of a general nature, no question of exemption would arise as restriction as well as power to grant

would bring the phenomenon of bus stand to the status of a license which could be withdrawn at any time. By relying upon the afore-referred principle of law it is held that demand of shifting the Wagon Stand of the petitioner to General Bus Stand due to administrative issues relating to traffic flow in the city etc. would not be contrary to the right of the petitioner under Article 18 of the constitution providing freedom of business, trade or profession as the respondents were not stopping the petitioners to carry on their business as transporters but were only shifting the premises for regulating the same for smooth functioning of the same in the public interest. Moreover, there was no reason to interfere in the demand of the respondents for shifting the Wagon stand based on administrative control of situation and interference in the same is not also required to be made in view of provision of Section 56(d) of Specific Relief Act, 1877.

8. The next grievance of the petitioner that the petitioner holds a D-Class stand whereas alternate facilities of B-Class stand will be provided to the petitioner by the respondents, which is prejudicial to them as the facilities being offered are less than that of their present business premises. Be that as it may, as all the Transporters regardless of their business facilities have been directed to shift to the General Bus Stand and are being provided similar treatment, the afore-referred ground loses its significance. Besides, the various classes i.e. Class-A, B, C & D of stands have been made as an administrative arrangement for smooth running of business of transportation and the said arrangements may be varied or interchanged from time to time according to the prevailing situation. Needless to mention that as all the bus and wagon stands are

being shifted to the General Bus Stand regardless of their previous arrangements and facilities, therefore, the offered alternate arrangements can neither be termed as unreasonable or discriminatory to the petitioners nor suffering from any illegality, arbitrariness and established *mala fides*. Hence, the policy decision taken by the respondents cannot be interfered with by this Court in view of the principles laid down in the above quoted case of Dossani Travels. Besides, the Secretary, RTA has stated that the Bus and Wagon Stands situated near the General Bus Stand are also to be issued notices very shortly to shift their business within the premises of the General Bus Stand and therefore, the claim of the petitioners for providing them with an independent alternate space outside the premises of General Bus Stand is also not justified. Further, through the initial agreement entered with them the petitioners had agreed to abide by the rules, regulations and policies framed by the respondents and an express terms at serial number 8 of the agreement, which is available in all agreements provides that stand will be shifted outside the city as and when directed by the RTA and the parties will not indulge in litigation in any Court. The petitioners have signed the undertaking to abide by the said agreement and all its conditions with the rider that in case of violation of any condition, licence may be revoked without notice. Consequently, no prejudice is caused to the petitioners, who cannot approbate and reprobate and are estopped to challenge the same at this stage especially when the respondents in their policy making sphere have the jurisdiction to make and vary policy in the public interest as per needs of a particular situation, time and place.

9. As regard the requirement of time frame for shifting the Wagon Stand to General Bus Stand is concerned it has been observed that the matter has been lingering on for over two decades, during which timeframe, various notices and reminders have been issued by the respondents for shifting the Bus Stands, which have been challenged by the petitioners by filing different petitions time and again with varying results. Therefore, it cannot be concluded that sufficient notice, time and opportunity was not provided to the petitioners for shifting of the stands. In view thereof, the demand of the respondents to shift the business of the petitioners to General Bus Stand cannot be declared as interference in the lawful business of the petitioners amounting to harassment and the same cannot be termed to be without lawful authority and of no legal effect.

10. On the basis of above discussion, this Court is not inclined to allow the prayer of the petitioners, however, this petition is **disposed of** with a direction to the respondents that they shall provide reasonable facilities to the petitioners at the General Bus Stand including space for office and bays for the purpose of plying vehicles, for enabling them to shift their business within reasonable time frame. This exercise shall be carried out expeditiously, preferably within 30 days of this order.

(MUZAMIL AKHTAR SHABIR)
Judge

Waqar

Approved for reporting.

FORM No. HCJD/C-121

ORDER SHEET

IN THE LAHORE HIGH COURT,
MULTAN BENCH, MULTAN

JUDICIAL DEPARTMENT

Crl. Org. No.145-W/2021

Al Abbas Mini Travel Service etc. **Vs.** Mr. Javaid Akhtar Mehmood
etc.

<i>Sr. No. of order/ proceedings</i>	<i>Date of order/ Proceeding</i>	<i>Order with signature of Judge, and that of Parties' counsel, where necessary</i>
	03.02.2021	Mr. Tahir Mehmood, Advocate for the petitioners. Mr. Abdul Salam Alvi, Advocate for respondents No.4 to 6. Haji M. Aslam Malik, Advocate for Municipal Corporation, Multan. Mr. Muhammad Aurangzeb Khan, AAG alongwith Rana Shahid Manzoor, Senior Law Officer, Commissioner Office, Multan, Rana Mohsin Ghulam Sabir, Secretary, District Regional Transport Authority, Multan and Muhammad Khalid Amin, Inspector, CPO Office, Multan.

In view of what has been decided in the main
W.P.No.1430/2021, I am not inclined to proceed with
this contempt petition, which is accordingly **disposed**
of.

(MUZAMIL AKHTAR SHABIR)
Judge